Additional Reports

In addition to the forms associated with starting a campaign (Forms 501 and 410) and the main campaign disclosure form (Form 460), there are several other forms that may be required, depending on the committee's activity. For example, most committees must file the 24-Hour/10-Day Contribution Report (Form 497).

Primarily formed committees making independent expenditures must file the independent expenditure reports discussed below. A candidate's controlled committee for their election will likely not be filing independent expenditure reports because it is making direct campaign expenditures for the candidate's election to office.

This chapter reviews the following special reports that may be required.

- 24-Hour/10-Day Contribution Reports (Form 497)
- 24-Hour/10-Day Independent Expenditure Reports (Form 496)
- Verification of Independent Expenditures (Form 462)
- Special Odd-Year Reports (Form 460)
- Paid Spokesperson Reports (Form 511)
- Reports of Communications Identifying State Candidates (Form E-530)

FPPC Reporting Forms

Your Committee	File
Receives Contributions:	
Receives contributions totaling $1,000 or more from a single source during the 90 days before the election or on the date of the election	Form 497
Makes Independent Expenditures:	
Makes independent expenditures totaling $1,000 or more to support or oppose a single candidate or ballot measure during the 90 days before the candidate or measure's election or on the date of the election	Form 496
Makes independent expenditures totaling $5,000 or more to support or oppose the **qualification** of a single local measure	Form 496
Makes independent expenditures totaling $1,000 or more to support or oppose a single candidate or ballot measure	Form 462
Makes Payments:	
Makes contribution(s) totaling $10,000 or more to **state** officeholders during the first or third quarter of an odd-numbered year	Form 460
Makes contributions totaling $1,000 or more to another candidate or ballot measure committee during the 90 days before the candidate or measure's election or on the date of the election, or to a state or county political party committee during the 90 days before any state election or on the date of the election	Form 497
Makes contributions totaling $5,000 or more to support or oppose the **qualification** of a single local measure	Form 497
Makes expenditures for an individual to appear in a ballot measure advertisement	Form 511
Makes payments of $50,000 or more to "feature" a **state** candidate within 45 days before the candidate's election	Form E-530

A. 24-Hour/10-Day Contribution Report (Form 497)

The 24-Hour/10-Day contribution report provides immediate reporting of contributions received or made near or on the election date. The Form 497 must be filed if a candidate controlled committee or a primarily formed committee:

QUICK TIP: When aggregating contributions from a single source, monetary contributions, nonmonetary contributions, and loans are included.

- **Receives** contributions that total in the aggregate $1,000 or more from a single source during the 90 days before the candidate's election, including the date of the election; or

- **Makes** contributions that total in the aggregate $1,000 or more to a candidate or a committee primarily formed to support a candidate(s) or ballot measure(s) during the 90 days before the candidate's or measure's election, including the date of the election; or

- **Makes** contributions that total in the aggregate $1,000 or more to a state or county political party committee during the 90 days before any state election, including the date of the election.

- **Makes** contributions that total in the aggregate $5,000 or more to support or oppose the **qualification** of a single local initiative or referendum ballot measure.

  This Form 497 is required to be filed within 10 business days in the place(s) where the committee would be required to file campaign statements as if it were formed or existing primarily to support or oppose the local initiative or referendum ballot measure.

Contributions reported on the Form 497 must also be reported on the committee's next Form 460.

Ex 11.1 - Thirty days before the candidate's election, the candidate's committee received a $500 contribution. Four days later, the same person contributed $600. The candidate's committee must file a Form 497 since $1,000 or more was received from a single source during the 90-day period before the election. The same person must contribute another $1,000 or more in order for a subsequent Form 497 to be required.

QUICK TIP: If a committee makes a nonmonetary contribution, it must notify the recipient of the contribution's value within 24 hours.

Ex 11.2 - In June, the candidate's election committee for a November election received a contribution of $2,000. The Form 497 is not required because it was not received during the 90-day period before the November election. In October, the same person made a contribution of $600 to the candidate's committee. The Form 497 is not required until that person contributes $1,000 or more in the 90 days before or on the date of the November election. Contributions received prior to the 90 days before the November election are not aggregated with contributions received during the 90-day period.

QUICK TIP: The 90-day, 24-Hour/10-Day reporting period includes the date of the election.

In some local elections, a candidate's name will not appear on a ballot if no other individual runs for that office. Following the determination by the elections official that the candidate's name will not appear on the ballot, the Form 497 is not required to be filed by the candidate even if the candidate's committee receives $1,000 or more during the 90 days before the election, including the date of the election.

When and Where to File the Form 497

The Form 497 must be filed **within 24 hours** of **receiving or making** contributions as described above. A contribution is received on the date the candidate, committee, or an agent of the committee obtains possession or control of the check or nonmonetary item that constitutes a contribution. (See Chapter 2.) A contribution is made on the date it is mailed, delivered, or otherwise transmitted. A committee that makes a nonmonetary contribution must notify the recipient of the contribution's value within 24 hours by personal delivery, fax, or guaranteed overnight delivery.

QUICK TIP: A candidate who loans or makes contributions to their own campaign, in the aggregate of $1000 or more, within the 90 days before an election, plus the date of the election, must file a Form 497.

QUICK TIP: If a candidate receives a contribution of $1,000 or more, from a single source, in the 90 days before an election, plus the day of the election, they must file a Form 497, even if they have not been required to open a committee.

QUICK TIP: Contributions reported on the Form 497 must also be disclosed on the committee's next regular campaign statement (Form 460 or Form 450).

Exceptions:

- The Form 497 must be filed **within 48 hours** of **receiving** a nonmonetary contribution.

- The Form 497 must be filed within 10 business days when contributions that total $5,000 are made to support or oppose the qualification of a single local measure.

Filing deadlines are extended to the next business day when they fall on a Saturday, Sunday, or official state holiday. However, the extension does not apply on the Saturday, Sunday, or an official state holiday immediately prior to an election. For example, a fundraiser held on a Friday evening results in several individuals making contributions of $1,000 or more. Generally, the committee must file the Form 497 on the following Monday. However, if the fundraiser is held the Friday evening of the week before the election, the "next business day" deadline extension does not apply, so the Form 497 must be filed within 24 hours.

Except for the Form 497 triggered at $5,000, the Form 497 is filed in the same location the committee files its regular campaign statements (Form 460 or Form 450) and must be filed by fax, guaranteed overnight delivery service, or personal delivery. Regular mail may not be used. Some local agencies may have an electronic filing system or may accept the Form 497 via email.

Reporting Multiple Nonmonetary Contributions

If a committee anticipates that more than one nonmonetary contribution will be made to another committee or received from a single contributor during the 90 days before the election (including the date of the election), it may, on or before the deadline, file a single Form 497 covering the period in which the nonmonetary contributions will be made or received. The report must disclose the total value of nonmonetary contributions that will be made, or, if the actual value of nonmonetary contributions is not known at the time of filing, a good faith estimate of the value. If an estimated value differs from the reported amount by 20 percent or more, the committee must amend the Form 497 within 24 hours from the time the committee knows that the estimated value is incorrect.

497 Contribution Report

Amounts may be rounded to whole dollars.

A

ME OF FILER
Manuel Alvarez for Mayor 20XX

AREA CODE/PHONE NUMBER: 707-555-6868

I.D. NUMBER *(if applicable)*: 12344XX

STREET ADDRESS: 225 Presley Street

CITY: Oakmont | STATE: CA | ZIP CODE: 95443

B

Date of This Filing: 11/01/20XX

Report No.: 1

☐ Amendment to Report No. _____ (explain below)

No. of Pages: 1

Date Stamp

CALIFORNIA FORM 497

For Official Use Only

1 Contribution(s) Received

DATE RECEIVED	FULL NAME, STREET ADDRESS AND ZIP CODE OF CONTRIBUTOR (IF COMMITTEE, ALSO ENTER I.D. NUMBER)	CONTRIBUTOR CODE*	TYPE OF CONTRIBUTION	IF AN INDIVIDUAL, ENTER OCCUPATION AND EMPLOYER (IF SELF-EMPLOYED, ENTER NAME OF BUSINESS)	AMOUNT RECEIVED	TYPE OF ELECTION	CUMULATIVE AMOUNT
10/30/XX	Loretta Stone 28 Hemlock Street Oakmont, CA 95434	☑ IND ☐ COM ☐ OTH ☐ PTY ☐ SCC	☑ MONETARY ☐ NON - MONETARY	Nurse - Oakmont Hospital	$2,000 ☐ Check if Loan _____% Provide interest rate	☑ GENERAL ☐ PRIMARY ☐ OTHER	$2,000
10/30/XX	ABC Company 220 R Street Oakmont, CA 95434	☐ IND ☐ COM ☑ OTH ☐ PTY ☐ SCC	☑ MONETARY ☐ NON - MONETARY		$3,000 ☐ Check if Loan _____% Provide interest rate	☑ GENERAL ☐ PRIMARY ☐ OTHER	$3,000

Completing the Form 497

A Filer Information

Provide the committee's full name, telephone number, street address, city, state, zip code, and committee ID number.

B Date, Report Number, Number of Pages

Indicate the date the report is being filed; assign a unique number to each Form 497, such as 1, 2, 3, PR-1, PR-2, PR-3, etc.; and, indicate the number of pages included in the report.

1 Contributions Received

For contributions received, provide:

- The date received.
- The contributor's full name, street address, and zip code; for contributions of $100 or more from a limited liability company (LLC) that has qualified as an independent expenditure committee or major donor, include the name of the LLC and the full legal name of the LLC's responsible officer as defined in Regulation 18402.2. If the contributor is an LLC that has qualified as a recipient committee, include the name of the committee and its principal officer as defined in Section 82047.6, for contributions of $100 or more. For an LLC that has not qualified as a committee, include the name of the LLC and the full legal name of the individual primarily responsible for approving the contribution.
- The contributor code. For each itemized contributor, check the box indicating whether the contributor is an individual, a committee, "other" (such as a business entity), a political party, or a small contributor committee.
- If the contributor is an individual, their occupation and employer must be provided. If the individual is self-employed, the name of the business must be provided.
- The amount of the contribution. Check the box if it was a loan.

Contributions Made

For contributions made, provide:

- The date made.
- The recipient's full name, street address, and zip code.
- The office sought or held (if the contribution is made to a candidate).
- The ballot measure number or letter and jurisdiction (if the contribution is made to a ballot measure committee).

- The amount of the contribution.
- The date of election.

Amending the Form 497

To amend a previously filed Form 497, file another Form 497 with the corrected or missing information, assign a new unique identifying number as the Report Number, check the "Amendment" box, and enter the identifying number of the report being amended. Describe the reason for the amendment in the space provided at the bottom of the form. There is no specified deadline for filing amendments; however, amendments should be filed as soon as practicable. Amendments are filed in the same location as the original.

Answering Your Form 497 Questions

A. Must a candidate file a Form 497 if, during the 90 days before the election, or on the date of the election, they loan their campaign committee $1,000?

Yes. A candidate's personal funds that are loaned to or contributed to the committee trigger the Form 497 requirement.

B. Must a candidate file a Form 497 if, during the 90 days before the election (or on the date of the election), they transfer campaign funds totaling $1,000 or more from a campaign committee established for a prior office to the campaign committee established for the office they are currently seeking election to?

No. Transfers among a candidate's own local campaign election committees are reported as miscellaneous increases to cash, not as contributions.

C. A committee will receive nonmonetary contributions from a single source during the 90 days before the election, including the date of the election. The contributions involve several days of telephone banking by paid individuals. Rather than filing several reports, may the committee file one Form 497 with an estimated value of the nonmonetary contributions anticipated to be received from this source during the 90 days before the election?

Yes. The committee may make a good faith estimate of the value that will be received during the period. The Form 497 must be filed within 48 hours of receiving the first $1,000 in nonmonetary contributions. If the actual value differs from the estimated amount by 20 percent or more, the estimated report must be amended within 24 hours of determining the correct amount.

D. Must a committee file a Form 497 when a contributor forgives a loan of $1,000 or more during the 90 days before the election, including the date of the election?

Yes. A loan forgiveness is reported as a contribution and triggers the Form 497 requirement.

E. A candidate has one open committee for a past election and one for the current election. If the committee for the past election receives $1,000 or more from a single source in the 90-day, 24-Hour/10-Day reporting period for the current committee, must the committee for the past election file a Form 497?

Yes. When a candidate is in a 90-day reporting period, contributions totaling $1,000 or more to any of the candidate's committees trigger the Form 497 requirement.

Ex 11.3 - City council candidate Martinez's controlled committee for election to office does not file independent expenditure reports when it pays for mailers for the candidate's election, because these payments are direct campaign expenditures made by the candidate. An independent group sending mailers attacking council candidate Martinez's opponent, without the cooperation, knowledge or consent of council candidate Martinez, will file independent expenditure reports.

B. Independent Expenditure Reporting

As described in Chapter 6, a payment for a communication that expressly advocates support of or opposition to a candidate or ballot measure, which is not made at the behest of the candidate or measure committee, is an "independent expenditure." Chapter 6 defines in detail "expressly advocates" and "made at the behest of" and provides examples to assist committees in determining whether a payment made for a communication is considered an independent expenditure.

The Act requires committees making independent expenditures to file several forms so that voters are fully informed about who is paying for the communications that urge voters to support or oppose a particular candidate or ballot measure. Because the affected candidate or measure committee will not report the expenditures, the committee making the independent expenditures must file certain forms at the same time the candidate is required to file. In addition, a verification form that identifies an individual who is responsible for ensuring that the campaign committee's independent expenditures were not coordinated with the listed candidate or ballot measure (or the opponent) must be filed.

A committee that makes an independent expenditure of $1,000 or more must also file the forms 496 (24-Hour/10-Day Independent Expenditure Report)listed below.

- Form 496 (24-Hour/10-Day Independent Expenditure Report)
- Form 462 (Verification of Independent Expenditures)

What is the Date an Independent Expenditure is Made?

A payment made in connection with the development, production, or dissemination of a communication that is an independent expenditure must be reported no later than the date the communication is mailed, broadcast, or otherwise disseminated to the public. If the communication is never disseminated to the public, it need not be reported.

Candidate Controlled Election Committees

Communications paid for by a candidate's controlled committee to support their own election, or to oppose their opponent, are direct campaign expenditures, not contributions or independent expenditures.

If a candidate pays for a communication supporting their own candidacy that also supports or opposes a ballot measure, the payment is not considered a contribution or independent expenditure made in connection with the ballot measure.

If a candidate pays for a communication that supports another candidate, and the payment is not made at the behest of the endorsed candidate, the payment is not considered to be an independent expenditure if: (1) the candidate paying for the communication also is included in the communication; (2) the non-paying candidate is listed on the same ballot as the paying candidate: and (3) the communication is targeted only to the potential voters in the paying candidate's district.

Primarily Formed Committees

A committee that is primarily formed to support or oppose a candidate is not associated with the candidate. Therefore, payments made for communications that expressly advocate support or opposition of the candidate are considered to be independent expenditures because they are not made at the behest of the candidate.

Ex 11.4 - A committee is primarily formed to support a mayoral candidate. The committee must act totally independent of the mayoral candidate's campaign. Seven days before the election, the committee paid $5,000 for an advertisement in a local newspaper urging voters to support the candidate. The primarily formed committee must file the Form 496.

Filing Deadlines for Independent Expenditure Forms

This chart summarizes the deadlines and filing locations for each of the independent expenditure forms. Each of the forms is discussed in detail below.

Deadline	Form	Filing Location
Within 24 hours	496	Filing officer where election is held
10 days after first independent expenditure	462	FPPC

Ex 11.5 - Ten days before an election, a committee spent $1,700 on a mailing that equally advocated support of two candidates. The mailing was done completely independent of the candidates. Since the value to each candidate was only $850 (less than $1,000), the committee is not required to file the Form 496 for either candidate.

Three days before the election, the committee independently spent $400 for lawn signs advocating support of one of the candidates included in the earlier mailing. Because the total spent on behalf of this candidate is now $1,000 or more in the 90 days before the election including the date of the election, the committee must file the Form 496 in connection with this candidate.

24-Hour/10-Day Independent Expenditure Report (Form 496)

The 24-Hour/10-Day Independent Expenditure Report provides immediate disclosure of independent expenditures made near or on the election date. The Form 496 must be filed if a committee makes independent expenditures totaling $1,000 or more to support or oppose a single candidate or a single ballot measure during the 90 days before the candidate's or measure's election, including the date of the election.

Note: The Sacramento Superior Court ruled in *Charles R. "Chuck" Reed v. Fair Political Practices Commission* that San Jose Mayor Reed was not subject to independent expenditure restrictions. For more information, contact the FPPC's Legal Division.

Expenditures reported on the Form 496 must also be reported on the committee's next regular campaign statement (Form 460). The Form 462 (Verification of Independent Expenditures) must also be filed.

When and Where to File the Form 496

The Form 496 must be filed **within 24 hours** of making an independent expenditure of $1,000 or more **during the 90 days** preceding the election, including the date of the election, in which the candidate or measure will be voted on. An independent expenditure is made when the communication is disseminated to the public. There is no deadline extension for filing the Form 496. It must be filed within 24 hours regardless of the day of the week. A separate Form 496 must be filed for each candidate or ballot measure supported or opposed.

The Form 496 is filed with the filing officer that receives the campaign statements for the candidate or measure supported or opposed. (See the chart below.) This allows voters in the affected jurisdiction to have access to reports disclosing who is spending funds attempting to influence them.

Local Elections: The Form 496 must be filed by fax, guaranteed overnight delivery, personal delivery, or email, if available. Regular mail may not be used. A local ordinance may require that the form be filed electronically. Contact the local filing officer to determine if electronic filing or email is available.

Location of Filing Form 496

State Elections: The Form 496 must be filed electronically with the Secretary of State's office when it is filed in connection with a state candidate or measure. No paper copies are accepted. If the Form 496 is filed in connection with a CalPERS or CalSTRS election, a copy must also be filed with the relevant board's office.

> **Ex 11.6 -** A city councilmember's election committee made an independent expenditure of $8,000 to support a county ballot measure. The Form 496 must be filed with the county elections office.

10-day Independent Expenditure Report (Form 496)

Additionally, a Form 496 is required to be filed within 10 business days when a committee makes independent expenditures that total in the aggregate $5,000 or more to support or oppose the **qualification** of a single local initiative or referendum ballot measure.

> **Ex 11.7 -** A county supervisor's election committee made an independent expenditure of $10,000 to support a state ballot measure. The Form 496 must be filed electronically with the Secretary of State's office.

496 Independent Expenditure Report

Amounts may be rounded to whole dollars.

A

NAME OF FILER
Friends Supporting Alvarez for Mayor 20XX

AREA CODE/PHONE NUMBER: 707-111-2222
I.D. NUMBER *(if applicable)*: 12399XX

STREET ADDRESS: 10 Main Street

CITY: Oakmont
STATE: CA
ZIP CODE: 95443

B

Date of This Filing: 11/1/20XX

Report No.: 2

☐ Amendment to Report No. _____ (explain below)

No. of Pages _____

Date Stamp

CALIFORNIA FORM 496

For Official Use Only

1 List Only One Candidate or Ballot Measure

NAME OF CANDIDATE SUPPORTED OR OPPOSED: Manuel Alvarez

OFFICE SOUGHT OR HELD	DISTRICT NO.	SUPPORT	OPPOSE
Mayor		X	

NAME OF BALLOT MEASURE SUPPORTED OR OPPOSED

BALLOT NO./LETTER	JURISDICTION	SUPPORT	OPPOSE

2 Independent Expenditures Made *Attach additional information on appropriately labeled continuation sheets.*

DATE	DESCRIPTION OF EXPENDITURE	AMOUNT
10/31/20XX	Newspaper Advertisement (cumulative total: $6,000)	$2,000

3 Contributions of $100 or More Received*

DATE RECEIVED	FULL NAME, STREET ADDRESS AND ZIP CODE OF CONTRIBUTOR (IF COMMITTEE, ALSO ENTER I.D. NUMBER)	CONTRIBUTOR CODE **	IF AN INDIVIDUAL, ENTER OCCUPATION AND EMPLOYER (IF SELF-EMPLOYED, ENTER NAME OF BUSINESS)	AMOUNT RECEIVED	INTEREST RATES
10/28/20XX	Joe Brown 1800 Second Street Oakmont, CA 95443	☒ IND ☐ COM ☐ OTH ☐ PTY ☐ SCC	Retired	$200	If loan, enter interest rate, if any _____%

Jurisdiction of Candidate or Measure Supported/Opposed	
Statewide	Secretary of State – Electronically only
Senate or Assembly District	Secretary of State – Electronically only
CalPERS/CalSTRS	Secretary of State – Electronically only Also file a copy at CalPERS/CalSTRS board office
Multi-County	County with the largest number of registered voters in the jurisdiction
County	County in which the candidate or measure will appear on the ballot. LAFCO proposals: County where measure likely to appear on the ballot and the LAFCO.
City	City in which the candidate or measure will appear on the ballot

Completing the Form 496

A Filer Information

Provide the committee's name, street address, city, state, zip code, telephone number, and committee ID number.

B Date, Report Number, Number of Pages

Indicate the date the report is being filed; assign a unique number to each Form 496, such as 1, 2, 3, PR-1, PR-2, PR-3, etc.; and, indicate the number of pages included in the report.

> **QUICK TIP:** Generally, the "cumulative amount" means the amount of independent expenditures made in the current calendar year.

1 Name of Candidate or Ballot Measure Supported or Opposed

Provide the name of the candidate supported or opposed and the office sought or held (and district, if applicable). Or, provide the name of the ballot measure supported or opposed, the jurisdiction in which the measure is being voted upon, and its number or letter if it has been assigned. Indicate whether the independent expenditure supported or opposed the candidate or ballot measure.

2 Independent Expenditures Made

Provide the date the committee made the independent expenditure. In the "Description of Expenditure" field, include a description of the independent expenditure (e.g., radio advertisement, billboard, mailing) and the cumulative-to-date total for independent expenditures relating to each candidate or measure. List the amount of the specific expenditure in the "Amount" column.

3 Contributions of $100 or More Received

Disclose contributions of $100 or more received since the closing date of the last campaign statement filed through the date of the independent expenditure. If no previous campaign statement has been filed, disclose contributions of $100 or more received since January 1 of the current calendar year.

Disclose the name and street address of the contributor and, if the contributor is an individual, their occupation and the name of their employer. If the individual is self-employed, disclose the name of the business. Also disclose the date and amount of the contribution, the contributor code, and type of contribution. If the contribution is a loan, enter the interest rate. Once you have disclosed a contribution on the Form 496, it is not necessary to report that contribution on any additional Form 496 filings; however, it must be reported on the committee's next regular campaign statement (Form 460 or Form 450).

For contributions of $100 or more received from a limited liability company (LLC) that has qualified as an independent expenditure committee or major donor, include the name of the LLC and the full legal name of the LLC's responsible officer as defined in Regulation 18402.2. For contributions of $100 or more received from an LLC that has qualified as a recipient committee, include the name of the committee and its principal officer as defined in Section 82047.6. For an LLC that has not qualified as a committee, include the name of the LLC and the full legal name of the individual primarily responsible for approving the contribution. If more than one individual shares in the primary responsibility of approving a contribution, at least one such individual must be identified.

Amending the Form 496

To amend a previously filed Form 496, file another Form 496 with the corrected or missing information, assign a new unique identifying number as the Report Number, check the "Amendment" box, and enter the identifying number of the report being amended. Describe the reason for the amendment in the space provided at the bottom of the form. There is no specified deadline for filing amendments; however, amendments should be filed as soon as practicable. Amendments are filed in the same location as the original.

Ex 11.8 - A committee primarily formed to oppose a candidate made independent expenditures of $20,000 to oppose the candidate in the primary election. A Form 462 is required for the primary election. If the committee makes independent expenditures of $1,000 or more to oppose the candidate in the general election, another Form 462 must be filed.

Verification of Independent Expenditures (Form 462)

The Form 462 must be filed if the committee makes an independent expenditure of $1,000 or more in a calendar year to support or oppose a single candidate or a single ballot measure. The purpose of the Form 462 is for officers of the committee making the independent expenditure to verify that the committee's expenditures are indeed independent and have not been coordinated with the affected candidate or ballot measure committee (or the opponent). The form also verifies that the committee has not received any unreported contributions or reimbursements to make the independent expenditures.

Ex 11.9 - A committee primarily formed to support a candidate on a November ballot made its first independent expenditure of $1,000 or more in September and filed the Form 462 listing the candidate. In October, the committee made several more independent expenditures to support the candidate. No additional Form 462s are required for that candidate for the November election.

When and Where to File the Form 462

The Form 462 must be filed within 10 days from the date of the committee's first independent expenditure of $1,000 or more to support or oppose a candidate or measure in a calendar year. An independent expenditure is made when the communication is disseminated to the public. A candidate or measure is listed only once for each election. Primary, general, and runoff elections are considered separate elections.

The Form 462 must be filed via email with the FPPC (form462@fppc.ca.gov). The originally signed form must be maintained with the committee's campaign records for four years.

Form 462
Verification of Independent Expenditures

CALIFORNIA FORM 462

This verification form identifies the individual responsible for ensuring that a campaign committee's independent expenditures were not coordinated with the listed candidate (or the opponent) or measure committee and that the committee will report all contributions and reimbursements as required by law. An independent expenditure is not subject to state or local contribution limits.

☐ Amendment (Explain)

1. Name of Committee:

NAME OF RECIPIENT COMMITTEE, ENTITY OR INDIVIDUAL			COMMITTEE ID #
Friends Supporting Alvarez for Mayor 20XX			12399XX
STREET ADDRESS		CITY	
10 Main Street		Oakmont	
STATE	ZIP CODE	E-MAIL	TELEPHONE NUMBER
CA	95443	kluuci@hotmail.com	(707) 111-2222

2. Candidate or Measures:

This committee has reported an independent expenditure(s) to support or oppose the candidate(s) or measure(s) listed on a ballot for the election date identified below. (Note: The reporting of an independent expenditure may occur after this form is filed if an independent expenditure is made before the 90 day, 24-hour reporting period of Government Code Sections 84204 and 85500.)

NAME OF CANDIDATE (First/Last) OR BALLOT MEASURE	SUPPORT	OPPOSE	OFFICE SOUGHT OR HELD/ BALLOT NO./LETTER	JURISDICTION AND DISTRICT, IF ANY	ELECTION DATE
Manuel Alvarez	✓		Mayor	Oakmont	11/4/20XX

3. Verification:

I have not received any unreported contributions or reimbursements to make these independent expenditures. I have not coordinated any expenditure made during this reporting period with the candidate or the opponent of the candidate who is the subject of the expenditure, with the proponent or the opponent of the state measure that is the subject of the expenditure, or with the agents of the candidate or the opponent of the candidate or the state measure proponent or opponent. I certify under penalty of perjury under the laws of the State of California that the following is true and correct.

Signature [Signature Required] **Printed Name** Karen Lucci **Signed on** [Date Required] *(month, day, year)*

(Check One): ☑ **Principal Officer** ☐ **Candidate/Officeholder** ☐ **State Ballot Measure Proponent** **FPPC Form 462 (Aug/2016)**

Completing the Form 462

1 Name of Committee

Enter the name and street address of the committee that is making the independent expenditure(s). The address should be the same as the address listed on the committee's Statement of Organization (Form 410). Provide the committee's assigned committee ID number.

2 Candidates or Measures

List the name of the candidate(s) or ballot measure(s) and mark the applicable support or oppose box. For candidates, list the office sought or held. The candidate's or measure's jurisdiction (and district if applicable) and the date of the election must also be listed.

3 Verification

The form must be reviewed and signed by the committee's principal officer. A principal officer is an individual primarily responsible for approving the political activity of the committee. (See Chapter 1.) If the committee has more than one principal officer, only one individual must sign the Form 462. The individual must be listed on the committee's Statement of Organization (Form 410). The same individual is not required to sign each Form 462. In the case of a controlled committee, the candidate or officeholder must sign the form.

Amending the Form 462

To amend a previously filed Form 462, file another Form 462 with the corrected or missing information, check the "Amendment" box, and describe the reason for the amendment in the space provided. Amendments to the Form 462 must be filed within 10 days of the change. Like the original, the amendment must be signed and dated and filed via email with the FPPC (form462@fppc.ca.gov).

Answering Your Independent Expenditure Questions

A. How frequently must the Form 462 be filed?

The Form 462 is required to identify the candidate or measure supported or opposed only once for each election. Once a candidate or measure is listed on the Form 462, no further filings are required for that candidate or measure for that election. If a committee makes independent expenditures related to a candidate in the primary election and later makes independent expenditures related to the same candidate in the runoff election, two Form 462s must be filed as they are separate elections.

B. Is an independent expenditure reportable by the committee for the candidate or the ballot measure named in the communication?

No. Because the communication is not made at the behest of the candidate or ballot measure committee, the expenditure for the communication is not reported by the affected candidate or measure committee. The person making the independent expenditure has the reporting obligations.

C. Is a candidate's controlled committee making an independent expenditure when it pays for a communication that supports the controlling candidate and supports or opposes a ballot measure listed on the same ballot?

No. This type of expenditure considered to be a direct campaign expenditure to promote one's own election.

D. May a committee pro-rate the value of a communication that contains both an independent expenditure and a non-political message?

Yes. The committee should value the independent expenditure as the portion of the costs directly associated with sending the message that expressly advocates support or opposition of a candidate or ballot measure.

C. Special Odd-Year Report (Form 460 or 450)

The odd-year report is designed to timely show if a committee is making large contributions to a number of state legislators or elected state officers during an off-election year when important issues such as the state budget or controversial legislation is being considered. The odd-year report must be filed, if during any odd-numbered year, the committee makes contributions totaling $10,000 or more to **elected state officers**, their controlled committees, or committees primarily formed to support or oppose any elected state officer during the first and third quarters of the year.

> **Ex 11.10** - Between July 1 and September 30 of an odd-numbered year, a local candidate's election committee contributes $6,000 to the Governor's ballot measure committee and $6,000 to the Secretary of State's election committee. The local committee must file a special odd-year report covering the period July 1 through September 30, by October 31.

The special odd-year report is completed in the same manner as a regular preelection or semi-annual statement (see Chapter 8) and includes all of the committee's activity during the reporting period, not just contributions to elected state officers.

When and Where to File the Special Odd-Year Report

The special odd-year report is filed where the committee files its regular campaign statements and is filed on the committee's regular campaign disclosure statement (Form 460 or Form 450).

Period Covered	Filing Deadline
January 1 through March 31	April 30
July 1 through September 30	October 31

D. Advertisement Reports

Paid Spokesperson Report (Form 511)

Promoting "truth in advertising," the Act requires that when a teacher, firefighter, doctor, or other person is in a ballot measure advertisement giving their expert views for or against the measure, the advertisement must disclose if the person has been paid. The Form 511 must be filed if a committee pays an individual for their appearance in a ballot measure advertisement in the following situations:

> **Ex 11.11** - In support of a local ballot measure, a committee hires a public relations firm to produce a television advertisement. A local celebrity is paid $5,000 or more to appear in the ad. The committee must include the ad disclosure described in Chapter 7 and must file the Form 511.

Payments of $5,000 or More: The committee makes expenditures totaling $5,000 or more to an individual for their appearance in an advertisement to support or oppose the qualification, passage, or defeat of a state or local ballot measure.

> **Ex 11.12** - A committee pays $200 for a doctor to appear in a television advertisement supporting a local ballot measure. The ad will clearly identify the individual as a doctor. The committee is not required to include an ad disclosure, but it must file the Form 511.

Payments of Any Amount: The committee makes expenditures of any amount to an individual for their appearance in an advertisement to support or oppose the qualification, passage, or defeat of a state or local ballot measure and the advertisement states or suggests that the individual is a member of an occupation that requires licensure or certification or other specialized documented training as a prerequisite to engage in that occupation (nurse, doctor, firefighter, scientist, engineer, lawyer, etc.).

QUICK TIP: Chapter 7 contains the requirements for advertisement disclosures, including the specific disclosures that may be required if a committee pays a spokesperson to appear in a ballot measure advertisement.

Committees that pay a spokesperson to appear in a ballot measure advertisement may be required to include specific disclosures on the advertisements. (See Chapter 7.)

When and Where to File the Form 511

The Form 511 must be filed within 10 days of making an expenditure identified above. An expenditure is made on the date the payment is made or the date the services are received, whichever is earlier. The Form 511 is filed in the same location the committee files its regular campaign statements (Form 460 or Form 450). Instructions for completing the Form 511 are provided on the FPPC's website.

Communications Identifying State Candidates (Form E-530)

The Act requires reporting of electioneering communications for state candidates, such as billboards on Interstate 5 saying "Thank you Senator Kim for your support of Central Valley Agriculture" placed right before the election. The Form E-530 must be filed if a committee makes a payment or a promise of a payment totaling $50,000 or more for a communication disseminated within 45 days of an election that clearly identifies a candidate for elective state office, but does not expressly advocate the election or defeat of the candidate.

The report must disclose the amount and date of the payment(s), and the name of and office sought by the candidate(s) identified in the communication. In addition, if $5,000 or more was received or promised from a single source to pay for the communication, the report must include the name and address of the contributor, as well as the date and amount received or promised. If the contributor is an individual, the individual's occupation and employer must also be included.

The report must be verified by a written "electronic filing declaration" signed, dated, and verified on the same date the report is transmitted to the Secretary of State. This declaration must be retained in the committee's records for five years following the date that the campaign report to which it relates is filed. The statement must include the following language:

> "I have used all reasonable diligence in preparing this report and to the best of my knowledge the information contained herein is true and complete. I certify under penalty of perjury under the laws of the State of California that the foregoing is true and correct."

When and Where to File the Form E-530

The Form E-530 must be filed electronically with the Secretary of State **within 48 hours** of making or promising to make a payment of $50,000 or more. There is no paper version of the Form E-530. To access the online form, go to the Secretary of State's website (www.sos.ca.gov). If the committee has not previously filed electronically with the Secretary of State, the committee will need to request a filer ID and password. The request form (Electronic Filing Password Request) is located on the Secretary of State's website under Campaign Finance.

Authority

The following Government Code sections and Title 2 regulations provide authority for the information in this chapter:

Government Code Sections

81004.5	Reports and Statements; Amendments.
81005	Reports and Statements; Filing Deadline on Weekend or Holiday.
82025	Expenditure.
82031	Independent Expenditure.
82036	Late Contribution.
82036.5	Late Independent Expenditure.
82044	Payment.
82047.6	Principal Officer.
84200.6	Special Campaign Statements and Reports.
84202.7	Time for Filing by Committees of Odd-Numbered Year Reports.
84203	Late Contribution; Reports.
84203.3	Late In-Kind Contributions.
84204	Late Independent Expenditures; Reports.
84204.5	Ballot Measure Contributions and Expenditures; Reports.
84213	Verification.
84511	Ballot Measure Ads; Paid Spokesperson Disclosure.
85310	Communications Identifying State Candidates.
85501	Prohibition on Independent Expenditures by Candidate Controlled Committees.

Title 2 Regulations

18250	Street Address.
18402.2	Limited Liability Companies, Responsible Officer.
18421.1	Disclosure of the Making and Receipt of Contributions.
18421.10	Reporting Contributions from Limited Liability Companies.
18425	24-Hour Contribution Reports.
18428	Reporting of Contributions and Independent Expenditures Required to be Aggregated.
18450.11	Spokesperson Disclosure.
18531.10	Communications Identifying State Candidates.
18539.2	Reporting Payments Pursuant to Government Code Section 85310.
18550	24-Hour Independent Expenditure Reports.